

Defendant to perform church services there. There is no evidence indicating what the Property is being used for, much less that it is being used for church services.

In Reply, Plaintiff notes that Defendant's declaration "reflects that he is subdividing the Property in anticipation of 'future sale.'" This appears to contradict any assertion that it was purchased to perform church services. The purchase of property to subdivide and later sell also does not appear to relate to the duties of a pastor.

The evidence appears to show a personal loan to a friend and church mentor to assist during a time of financial uncertainty. Even if performing church services was Defendant's profession, the loan does not appear to be related to that activity. Not only must "the individual against whom attachment is sought ... be engaged in a trade or business, but that the obligation underlying the action must arise directly out of the conduct of the trade or business." (*Great American Ins. Co. v. National Health Services, Inc.* (1976) 62 Cal.App.3d 785, 794.) Plaintiff has provided no admissible evidence establishing that Defendant obtained the loan from Plaintiff as part of his 'trade, business or profession.'

In Reply, Plaintiff argues that Defendant "offers no evidence supporting the assertion in the Opposition that 'the money was used for personal, family, or household purposes.'" The burden, however, is on Plaintiff to show the money was used for commercial purposes. (*Nakasone*, supra, 129 Cal.App.3d 762.) The Defendant does not need to prove otherwise.

Conclusion

Attachment is a harsh remedy because it causes the defendant to lose control of their property before the plaintiff's claim is adjudicated. (*Martin*, supra, 148 Cal.App.3d at 831.) Because of this, the statutory requirements are strictly construed. (*Kemp Bros. Construction, Inc.*, supra, 146 Cal.App.4th at 1476.) Plaintiff has the burden "to show, among other things, that the claim sued upon arose out of the conduct by this individual defendant of a trade, business or profession." (*Nakasone*, supra, 129 Cal.App.3d at 762.) Plaintiff must also show Not "that the obligation underlying the action [arose] directly out of the conduct of the trade or business." (*Great American Ins. Co.*, supra, 62 Cal.App.3d at 794.)

Plaintiff has failed to provide evidence that the loan relates to a commercial transaction. Accordingly, Plaintiff's application for a writ of attachment and right to attach order is **denied**.

9. 9:00 AM CASE NUMBER: C24-03299
CASE NAME: EXO ENERGY, INC. VS. COMPLETE SOLAR, INC.
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: COMPLETE SOLAR, INC.

TENTATIVE RULING:

Defendant Complete Solar's Motion to Compel Arbitration, filed on October 24, 2026, is **granted**. Plaintiff Exo Energy filed a notice of non-opposition on February 10, 2026. The Court will execute the proposed order lodged by Defendant on October 24, 2026. This matter is stayed pending arbitration. No appearance is required at the hearing on February 25, 2026.